

HEADNOTE

- “1. The legislator has not provided for a procedure to change the language of proceedings, as provided for in Art. 49(5) UPCA, R. 323 RoP for Local Divisions and Regional Divisions, before the Central Division. There is therefore no legal basis for changing the language of proceedings before the Central Division.*
- 2. A request to change the language of proceedings not filed in the language of proceedings is inadmissible.*
- 3. The general powers available to the court under R. 9.1 RoP are directed at efficient conduct of proceedings and cannot be used to supplement the rules on the language of proceedings pursuant to Art. 49 UPCA.*
- 4. Analogous application of the provisions applicable to Local Divisions and Regional Divisions regarding change of language of proceedings is not possible due to the absence of an unintended regulatory gap.*
- 5. In light of all this and the clear wording of the law, there is no room for an individual examination of the interests of the parties involved.*
- 6. The filing of pleadings in a language other than the language of proceedings is inadmissible. There is no legal basis for deviating provisions.*
- 7. The holding of the interim conference in a language other than the language of proceedings is only possible in the event of agreement between the parties (R. 105.3 RoP).*
- 8. For the conduct of oral proceedings, the language of proceedings is binding. There is no legal basis for deviating provisions.”*

COURT
Central Division in Paris

PROCEEDINGS
Procedural order

PATENT
EP 3 762 212 B1

DISPOSABLE 3D PRINTER
CARTRIDGE

KEYWORDS

Change of language of proceedings before...

Art. 49(5) and (6) UPCA

Rule 323 RoP

Article 49 Language of proceedings at the Court of First Instance

SUMMARY

The Central Division in Paris issued a procedural order. The patent at issue relates to a disposable 3D printer cartridge. According to the headnotes of the decision, the UPC rules do not provide for changing the language of proceedings before the Central Division. A request to change language must itself be filed in the language of proceedings. The court's general powers under the rules cannot override the specific language provisions. Furthermore, the rules for Local and Regional Divisions cannot be applied by analogy to the Central Division. The court cannot examine individual party interests to create exceptions to language rules. Also, pleadings filed in any language other than the language of proceedings are inadmissible. The interim conference may occur in a different language only if both parties agree. However, oral proceedings must always be conducted in the language of proceedings.